



SPONSOR: Sen. Sokola & Rep. Minor-Brown
Sen. Wilson

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 154

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE STATE EMPLOYEES' PENSION PLAN.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5527, Subchapter II, Chapter 55, Title 29 of the Delaware Code by making deletions as
2 shown by strike through and insertions as shown by underline as follows:

3 (d) (1) Notwithstanding provisions of this chapter to the contrary, an elected official shall receive a pension
4 computed in accordance with this subsection. The service or disability pension payable to the elected official and the
5 survivor's pension payable to the eligible survivor of such individuals shall be computed on the basis of compensation to
6 the elected official as an elected official irrespective of other credited service, with contribution to be determined based
7 upon compensation as an elected official. The minimum amount of pension payable to an elected member of the General
8 Assembly or a retired elected member of the General Assembly shall be computed by multiplying the elected official's
9 years of service as an elected member of the General Assembly times the highest rate of payment being paid to any retired
10 member of the General Assembly, such rate to be computed by dividing the monthly pension being paid to such retired
11 member by the elected official's years of service as an elected member of the General Assembly. An elected official elected
12 prior to January 1, 2012, shall be eligible to receive a pension beginning with the first month after the attainment of age 60,
13 provided that the elected official shall have served at least 5 years at the time of the elected official's termination of service
14 as an elected official, or beginning with the first month after attainment of age 55, provided that the elected official shall
15 have served at least 10 years at the time of the elected official's termination of service as an elected official. An elected
16 official elected on or after January 1, 2012, shall be eligible to receive a pension beginning with the first month after the
17 attainment of age 60, provided that the elected official shall have served at least 20 years at the time of the elected official's
18 termination of service as an elected official, or beginning with the first month after attainment of age 65, provided that the
19 elected official shall have served at least 10 years at the time of the elected official's termination of service as an elected
20 official. For the purposes of this section, a member of the General Assembly who is elected on Election Day in November
21 and serves through the next Election Day in November will receive full-service credit for that term. Any pension for

- 22 credited service other than as an elected official shall be determined under the remainder of this chapter as a separate
23 pension.

SYNOPSIS

This Act provides that, for purposes of Title 29 of the Delaware Code, Section 5527, related to the amount of monthly ordinary service or disability pension, a member of the General Assembly who is elected on Election Day in November and serves through the next Election Day in November will receive full-service credit for that term. Thus, the Act provides that a member of the House of Representatives who served five, two-year terms and, for each term, was elected on Election Day in November and served through the next Election Day in November will be credited with ten years of service. Likewise, the Act provides that a member of the Senate who served five, four-year terms and, for each term, was elected on Election Day in November and served through the next Election Day in November will be credited with twenty years of service.

Author: Senator Sokola